TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court *will not* entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: j2barrera@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at https://www.occourts.org/civil-remote-hearings prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your *audio **and** video* are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
February 19, 2026

#	Case Name	Tentative
1.	Creditors Adjustment Bureau, Inc. vs. Abbas 2024-01437598	Before the Court is a Motion for Terminating Sanctions brought by Plaintiff Creditors Adjustment Bureau ("Plaintiff") against Defendant Emile Abbas AKA Emile Jamil Abbas AKA Emile J. Abbas DBA Emtex Construction ("Defendant"). ROA 97. The underlying controversy involves causes of action for Breach of Contract, Open Book Account, Account Stated, and Reasonable Value. ROA 2. Plaintiff seeks an order for terminating sanctions, pursuant to California Code of Civil Procedure Sections 2023.030(d), 2030.290(c), and 2031.320(c), striking Defendant's Answer to the Complaint, entering of a default judgment against Defendant, and imposing monetary sanctions in the amount of $2,172.75 against Defendant for the reasonable expenses and attorney's fees

incurred in bringing the motion. ROA 97.

Defendant did not file an opposition to Plaintiff's motion.

Because the Court has ultimately determined that terminating sanctions are appropriate in this matter, the facts underlying this decision must be laid out in detail.

I. Timeline of Events

On March 4, 2025, Plaintiff propounded Requests for Production ("PROD"), Set One, and Special Interrogatories ("SROG"), Set One, upon Defendant. ROA 97, p.6, ¶ 3.

On May 27, 2025, having received no responses to Plaintiff's discovery requests, Plaintiff filed a Motion to Compel Responses to Plaintiff's PROD (ROA 23) and a Motion to Compel Responses to Plaintiff's SROG (ROA 27). *Id.*

On June 12, 2025, the Court ordered the parties to attend an Informal Discovery Conference ("IDC") on August 13, 2025, to resolve discovery disputes informally. ROA 33.

On August 12, 2025, the Court approved the parties' stipulation to continue the IDC and all pending motions to September 2, 2025. ROA 43. Accordingly, the Court ordered the parties to file an updated Joint Letter Brief ("JLB") no later than three (3) court days prior to the IDC. *Id*.

On August 28, 2025, the Court approved the parties' stipulation to continue the IDC again and all pending motions to September 23, 2025. ROA 57. Consequently, the Court ordered the parties to file an updated JLB no later than three (3) court days prior to the IDC. *Id*.

On September 22, 2025, the Court noted Defendant's failure to file an updated JLB as ordered. ROA 69. Accordingly, the Court scheduled an Order to Show Cause ("OSC") re: Monetary Sanctions Against Defendant for Failure to Comply with Court Order (ROA 57) for

		October 15, 2025. *Id.* Additionally, the Court continued the IDC, Plaintiff's Motion to Compel Production (ROA 23), and Plaintiff's Motion to Compel Responses to SROG (ROA 27) to October 15, 2025. *Id.* Finally, the Court ordered the parties to file an updated JLB no later than three (3) court days prior to the continued IDC. *Id.* On October 14, 2025, the Court noted Defendant *again* failed to file an updated JLB as previously ordered. ROA 77. Therefore, the Court set an OSC re: Terminating Sanctions against Defendant for continued failure to comply with court orders (ROA 57, 69). *Id.* Additionally, the Court continued the IDC, Plaintiff's Motions to Compel Answers to SROG (ROA 27), and Plaintiff's Motion to Compel PROD (ROA 23) to November 19, 2025. *Id.* On November 19, 2025, the parties attended IDC as ordered. ROA 92. There, the Court discharged the OSC re: Monetary Sanctions and Terminating Sanctions against Defendant; ordered Defendant to provide code compliant responses to Plaintiff's PROD (ROA 23) and SROG (ROA 27), Set One, no later than December 20, 2025; and continued both motions and another IDC to January 14, 2026. *Id.* On December 23, 2025, Plaintiff notified Defendant by email that Plaintiff had not received Defendant's responses and that Defendant was in violation of the Court's order yet again. ROA 97, Exh. 3. In said correspondence, Plaintiff also granted Defendant until December 30, 2025, to provide verified responses before Plaintiff would proceed with a motion for terminating sanctions. *Id.* On January 12, 2025, Plaintiff served Notice of Motion and Motion for Order for Terminating Sanctions and Request for Monetary Sanctions (ROA 97) upon Defendant by mail and e-mail. ROA 97, p.8. On January 14, 2026, Defendant yet again failed to appear for IDC as ordered. ROA 101. The Court also noted Defendant's failure to provide code compliant responses

pursuant to Plaintiff's Motion to Compel PROD (ROA 23) and Motion to Compel Answers to SROG (ROA 27) as ordered. *Id*. As a result, the Court granted Plaintiff's aforementioned motions, imposed sanctions against Defendant in the amount of $1,500.00, due and payable to Law Offices of Kenneth J. Freed within twenty-one (21) days (February 4, 2026), and advanced the Motion for Terminating Sanctions (ROA 97) to February 19, 2026. *Id.*

II. Discretionary Sanctions for Misuse of the Discovery Process

"California discovery law authorizes a range of penalties for conduct amounting to 'misuse of the discovery process,'" including monetary, issue, evidence, and terminating sanctions. *Doppes v. Bentley Motors, Inc*., 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code § 2023.030. California Code of Civil Procedure Sections 2030.290 and 2031.300 apply these provisions to instances in which a party fails to provide timely responses to interrogatories or requests for production, respectively. Cal. Civ. Proc. Code §§ 2030.290(c), 2031.300(c).

"The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. *Doppes, supra*, 174 Cal. App. 4th at 992 (citing *Reedy v. Bussell*, 148 Cal. App. 4th 1272, 1294 (2007); *Miranda v. 21st Century Ins. Co*., 117 Cal. App. 4th 913, 928-29 (2004)). In choosing a sanction, "[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery." *Doppes, supra*, 174 Cal. App. 4th at 992.

While the trial court has broad discretionary powers to enforce its orders, these powers are not unlimited. *Laguna Auto Body v. Farmers Ins. Exch.*, 231 Cal. App. 3d 481, 488 (1991). "The trial court cannot impose sanctions for misuse of the discovery process as a punishment." *Doppes, supra*, 174 Cal. App. 4th at 992; *Laguna, supra*, 231 Cal. App. 3d at 488.

Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial

purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct. *Williams v. Russ*, 167 Cal. App. 4th 1215, 1223 (2008) (citing *McGinty v. Superior Ct*., 26 Cal. App. 4th 204, 210-12 (1994)).

III. Terminating Sanctions

"The courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly." *Lopez v. Watchtower Bible and Tract Soc'y of New York*, 246 Cal. App. 4th 566, 604 (2016). Proportionality is critical when it comes to terminating sanctions because they altogether deny the non-compliant party a hearing on the merits and thus implicate due process. *Id*. To ensure proportionality, trial courts should generally take an "incremental" approach—that is, they should "attempt[ ] less severe alternative[] [sanctions]" *unless* the "record clearly shows lesser sanctions would be ineffective." *Id*. at 604 (emphasis added); *Van Sickle v. Gilbert*, 196 Cal. App. 4th 1495, 1516 (2011); *Doppes, supra*, 174 Cal. App. 4th at 992; *Oliveros v. Cnty. of Los Angeles*, 120 Cal. App. 4th 1389, 1399 (2004); *Creative, Inc. v. Creative Cotton, Ltd*., 75 Cal. App. 4th 486, 496 (1999).

While a decision to order terminating sanctions should not be made lightly, "where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." *Mileikowsky v. Tenet Healthsystem*, 128 Cal. App. 4th 262, 279-280 (2005); *Security Pac. Nat'l. Bank v. Bradley*, 4 Cal. App. 4th 89, 98 (1992).

Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed even just one discovery order. *See Lang v. Hochman*, 77 Cal. App. 4th 1225, 1244 (citing *Collisson & Kaplan v. Hartunian*, 21 Cal. App. 4th 1611 (1994)).

"Only two facts are absolutely prerequisite to imposition

		of the [nonmonetary] sanction: (1) there must be a failure to comply . . . and (2) the failure must be willful." *Calvert Fire Ins. Co. v. Cropper*, 141 Cal. App. 3d 901, 904; *e.g., Midwife v. Bernal*, 203 Cal. App. 3d 57, 62-63 (1988). Willfulness in the context of nonmonetary sanctions means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance . . . ." *Deyo v. Kilbourne*, 84 Cal. App. 3d 771, 787-788 (1978). "Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply." *Deyo, supra*, 84 Cal. App. 3d at p. 787. Thus, a court may "justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end" where the party has already failed to appear for deposition or respond to discovery requests, including by disobeying a court order to do so. *Housing Authority v. Gomez*, 26 Cal. App. 3d 366, 372-373 (1972). Here, Defendant has disobeyed four (4) court orders, including orders to appear before this Court to facilitate discovery and respond to discovery demands. ROA 101. The Court has attempted to impose monetary sanctions to induce Defendant's compliance, to no avail. *Id.* Therefore, it is this Court's determination that Defendant's violation of this Court's orders has been willful. Further, the foregoing record is unequivocal that Defendant's most recent violation has been preceded by a long history of abuse. Moreover, the Court is convinced that less severe sanctions will not compel compliance. Finally, because Defendant offers no substantial justification for their multiple failures to comply with this Court's orders, Defendant's failure to comply with this Court's Orders appears flagrant. Thus, Plaintiff's Motion for terminating sanctions against Defendant is **GRANTED,** and Defendant's Answer (ROA 12) is ordered **STRICKEN**. Plaintiff is ordered to proceed by way of default pursuant to California Code of Civil Procedure Section 585.

		Additionally, the Court **IMPOSES** monetary discovery sanctions against Defendant's counsel in the total collective amount of $2,172.75 due and payable to Plaintiff's counsel no later than sixty (60) days after receiving notice of this order. Plaintiff shall give notice.
2.	Mallett vs. City of Santa Ana 2025-01481868	Before the Court is a Motion to Compel Further Responses to Plaintiff's Request for Production, Set One. ROA 59. On July 30, 2025, Plaintiff propounded Requests for Production, Set One on Defendant City of Santa Ana. *Id*. On October 1, 2025, after several extensions, Defendant served responses to the Requests for Production. *Id*. Plaintiff contends that the responses are deficient. ROA 59. Plaintiff requests that the Court grant Plaintiff's motion to compel amended verified responses, and responsive documents, to RFP Nos. 1, 3, 4, 5, 6, 8, 9, 14, and 15, to include: (1) all video, audio (including dispatch recordings), and photographs of the January 1, 2025, shooting of Henry Gonzalez, Jr. and December 1, 2024, shooting of Noe Rodriguez; (2) all video, audio, notes, and transcriptions of witness statements from the January 1 shooting; (3) all incident reports, use of force reports, supplemental reports for the January 1, 2025, and December 1, 2024, shootings; and (4) all non attorney client privileged communications between City of Santa Ana personnel about the January 1, 2025 shooting. ROA 59. Defendant requests that the Court deny Plaintiff's Motion to Compel Responses to Requests for Production, Set One. ROA 84. I. Motion to Compel Production

Under California Code of Civil Procedure Section 2031.310, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any statement of compliance with the demand is incomplete; a representation of inability to comply is inadequate, incomplete, or evasive; or an objection is without merit or too general. Cal. Civ. Proc. Code § 2031.310.

Here, Defendant asserts objections on the grounds of Evidence Code Section 1040, Penal Code Sections 832.7 and 832.8, attorney client privilege, and privacy. ROA 59, Exh. 2. Plaintiff contends that the objections lack merit. ROA 59.

At issue are RFP Nos. 1, 3, 4, 5, 6, 8, 9, 14, and 15. ROA 59.

A. Evidence Code Section 1040

California Evidence Code Section 1040 contains the official information privilege which applies to "information acquired in confidence by a public employee in the course of his duty and not open, or officially disclosed, to the public prior to the time the claim of privilege is made." Cal. Evid. Code § 1040. The privilege is conditional and attaches only if "the court determines, in accordance with precise statutory standards, that disclosure is against the public interest . . . ." *Cnty. of Orange v. Superior Ct.*, 79 Cal. App. 4th 759, 763 (2000) (citing *Shepherd v. Superior Ct.*, 17 Cal.3d 107, 123 (1976)(overruled in part on other grounds).

Disclosure is against the public interest when "there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice . . . ." Cal. Evid. Code § 1040. In other words, application of the privilege involves weighing competing interests. *Cnty. of Orange, supra*, 79 Cal. App. 4th at 763.

The Court will address each element of the official information privilege individually.

1. Information Acquired in Confidence

Case and statutory law has expressed the notion that evidence gathered by police as part of an ongoing criminal investigation is by its nature confidential. *Cnty. of Orange, supra*, 79 Cal. App. 4th at 764. Many pieces of evidence or information contained in a file, when "[v]iewed individually[,] [] may not have been 'acquired in confidence' in the literal sense of that term," however, "[s]imply because the public may observe the police gathering evidence at a crime scene, or interviewing witnesses, it does not follow that the information obtained is public." *Id*.

In *County of Orange*, Plaintiffs argued that much of the information in the investigative file was not acquired in confidence and as such, not subject to the official information privilege. *Cnty. of Orange, supra*, 79 Cal. App. 4th at 764. For instance, in that case, the Plaintiffs contended that their own statements to the police, as well as statements made by other witnesses, photos, sketches, and police reports concerning the crime scene were all not acquired in confidence because the scene itself was "a ravine open to the public." *Id*. The Court of Appeal emphasized that this argument missed the mark. *Id*.

Here, Defendant argues that the information gathered in the course of an ongoing criminal investigation is, by nature, confidential. ROA 84. Defendant contends that the fact that the public may have observed police gathering evidence or that the crime scene is public does not change the confidential nature of the investigative materials. *Id*.

On the other hand, Plaintiff contends, that "all the videos and audios of the January 1, 2025, shooting of Mr. Gonzalez and December 1, 2024, shooting of Mr. Rodriguez were taken in public, with members of the public witnessing what was being recorded, and therefore were not acquired in confidence." ROA 93.

Plaintiff further argues that Defendant's invocation of *County of Orange* is inapposite, because it does not address video or audio recordings, and that "[t]he argument here is not that the 'public … observe[d] the police gathering'

		the video and audio footage,[] but rather that the video and audio *directly depict events that occurred out in the open* with members of the public watching." ROA 93 (emphasis added). The Court is not persuaded by Plaintiff's argument. It is difficult to discern *any* meaningful difference between Plaintiffs' argument here and the argument by Plaintiffs in *County of Orange*. Plaintiff contends that because the underlying events occurred in public, the investigative materials were not acquired in confidence. This is essentially the same syllogism that the Court in *County of Orange* rejected. Accordingly, the Court finds that the investigative material was acquired in confidence and this prong is satisfied. 2. Not Open or Officially Disclosed Plaintiff next argues that the audio and video of the incident—which occurred in public—were not acquired in confidence and, in any event, have already been publicly disclosed by Defendant through YouTube and in response to a California Public Records Act request. ROA 59. Plaintiff further contends that, at a minimum, the complete, unedited body worn camera footage and audio underlying the officially released YouTube video do not qualify as "official information." ROA 93. Defendant does not dispute that redacted body worn camera footage and certain 911 calls were publicly disclosed through the Santa Ana Police Department's Critical Incident YouTube video. ROA 84. Defendant represents that those same materials will be produced to Plaintiff upon the Court's approval of the protective order executed by the parties on February 2, 2026. *Id*. Defendant further clarifies, however, that Plaintiff's requests extend beyond the materials publicly released in the Critical Incident video. ROA 84. Specifically, Plaintiff seeks additional body worn camera footage, police reports, physical evidence logs, and other investigative materials that have not been publicly disclosed and remain confidential. *Id*.

The Court finds that any and all material included in the Santa Ana Police Department's Critical Incident video was publicly disclosed. Defendant has acknowledged that, subject to entry of the protective order, it will produce those previously disclosed materials. Accordingly, Defendant is **ORDERED** to produce all materials that have already been publicly released in unredacted form.

However, the Court agrees with Defendant that Plaintiff's requests encompass additional materials that have not been publicly disclosed and thus remains confidential. With respect to those undisclosed materials, the Court finds that this prong of the analysis is satisfied.

3. Weighing Interests

Implicit in weighing each side's interest is a "consideration of consequences." *Shepherd, supra,* 17 Cal.3d at 126. The consideration of consequences for the litigant will involve:

matters similar to those in the determination of materiality and good cause in the context of Code of Civil Procedure section 1985, including the importance of the material sought to the fair presentation of the litigant's case, the availability of the material to the litigant by other means, and the effectiveness and relative difficulty of such other means.

Id.

On the contrary, the consideration of the consequences of disclosure to the public "will involve matters relative to the effect of disclosure upon the integrity of public processes and procedures . . . ." *Shepherd, supra,* 17 Cal.3d at 126.

Courts have delineated the procedures required for a proper determination of the applicability of the Section 1040(b)(2) conditional privilege. *See People v. Superior Ct.*, 19 Cal. App. 3d 522, 530–531 (1971). These procedures include an *in camera* review pursuant to Evidence Code

		Section 915(b), attended by the party claiming the privilege, and an ensuing full scale adversarial hearing at which the strength of the parties' competing interests is explored, along with "the possibility of reasonable alternatives" to outright disclosure of the information sought. *People v. Superior Ct., supra*, 19 Cal. App. 3d at 530–531; *see also Michael P. v. Superior Ct*., 92 Cal. App. 4th 1036, 1045–1046 (2001); *but see Cnty. of Orange, supra,* 79 Cal. App. 4th at p. 768 (determining that no *in camera* review was needed to properly weigh interests). In *Michael P*., the court thought that the weighty interest of a child dependency determination mandated an *in camera* review of an investigative file to properly evaluate each side's competing interest. *Michael P., supra,* 92 Cal. App. 4th 1036, 1045–1046. However, in some circumstances where the interests are not as 'weighty' courts have permitted "confidentiality of [an] entire investigative file "for some reasonable period of time without any particularized judicial review of its contents." *Cnty. of Orange, supra,* 79 Cal. App. 4th at 768. In *County of Orange*, the court held that the public interest in solving a child's homicide and bringing the perpetrator(s) to justice outweighed Plaintiff's interest in obtaining the discovery sought. *Id*. at 767. The court elaborated that their determination did not preclude Plaintiffs from obtaining discovery indefinitely, but rather the privilege to prevent disclosure expired after a reasonable time. *Id*. at 768. The court added that "in the future the trial court may determine that there has not been enough progress in the investigation to justify protecting most of the investigative file any longer." *Id*. Here, Defendant argues that withholding records that are a part of an active criminal investigation is within the public interest. ROA 84. Specifically, Defendant contends that upon disclosure of the sensitive information contained in the file, witnesses who have information about the incident or the decedent may become reluctant to come forward and cooperate with law enforcement. *Id*. Defendant further argues that "disclosure of the records

		may interfere with key witness testimony by influencing witnesses to recall events based on what they have viewed in the disclosed materials, rather than what they personally observed or believed at the time of the incident." *Id*. Defendant clarifies that it is not advocating that the records should be withheld from disclosure indefinitely, rather that Defendant seeks to withhold the records until the Orange County District Attorney's ("OCDA") Office has been given the opportunity to complete its investigation and review of the shooting to determine whether criminal charges should be sought. ROA 84. Plaintiff contends that the consequences of non-disclosure to Plaintiff are severe. ROA 93. She argues that all video and audio recordings of the two shootings are highly relevant to her claims that Defendant Casillas negligently shot her son and that the Defendant City of Santa Ana's officials negligently supervised and retained him after the December 1, 2024, incident. ROA 93. Plaintiff asserts that these materials are exclusively in the Defendant City of Santa Ana's control and the only alternative to obtain them is via a California Public Records Act request ("CPRA"), which Defendant City of Santa Ana's has allegedly ignored. ROA 93. Plaintiff argues there is no reason she should rely on the CPRA instead of discovery in this case. *Id*. Plaintiff further argues that without these records, Plaintiff cannot effectively depose officers or witnesses, pursue follow up discovery, or develop expert theories, while Defendant has full access, creating a significant unfair advantage in preparation for the April 2027 trial. *Id*. Finally, Plaintiff notes that Defendant has provided no timeline for the completion of the OCDA criminal investigation, which means the withholding is effectively indefinite. ROA 93. After carefully weighing the competing interests, the Court concludes that an *in camera* review is not necessary at this time. The record and arguments presently before

the Court are sufficient to assess the parties' respective positions, and they demonstrate that Defendant City's interest in maintaining the confidentiality of its active investigative file presently outweighs Plaintiff's interest in immediate disclosure.

The Court recognizes that Plaintiff's interest in pursuing her civil claims for damages is substantial. However, that interest is, at this juncture, outweighed by Defendant City of Santa Ana's interest in preserving the integrity and confidentiality of the ongoing investigation into the officer's conduct. Premature disclosure of the investigative file could compromise the investigation and would not serve the public interest. The public has a strong interest in ensuring that allegations of officer misconduct are thoroughly and fairly investigated so that the City may determine and whether to impose appropriate discipline.

That said, the Court is equally mindful that an indefinite or open ended investigative timeline is inconsistent with the interests of justice. Defendant has provided no meaningful explanation for the duration of the investigation to date, and confidentiality cannot serve as a perpetual shield against discovery.

Accordingly, Defendant is **ORDERED** to provide Plaintiff, no later than March 11, 2026, with: (1) an estimated date for completion of the investigation; and (2) an estimated date for production of responsive materials after the completion of the investigation. Consistent with *County of Orange*, the Court retains discretion to revisit this issue and may, upon a showing of insufficient progress of the investigation, order disclosure of all or portions of the investigative file.

B. Penal Code Sections 832.7 and 832.8

Penal Code section 832.7 provides, in relevant part, that certain peace officer or custodial officer personnel records are not confidential and must be made available for public inspection pursuant to the California Public Records Act. Cal. Penal Code § 832.7. Specifically, the statute applies to records relating to the report, investigation, or findings of,

		among other things: an incident involving the discharge of a firearm at a person by a peace officer or custodial officer; or an incident involving the use of force against a person by a peace officer or custodial officer that resulted in death or great bodily injury. *Id*. Penal Code Section 832.8 defines "personnel records" as any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following: (1) personal data, including marital status, family members, educational and employment history, home addresses, or similar information; (2) Medical history; (3) election of employee benefits; (4) employee advancement, appraisal, or discipline; (5) complaints, or investigations of complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties; and (6) any other information the disclosure of which would constitute an unwarranted invasion of personal privacy. Cal. Penal Code § 832.8. Plaintiff contends that the reasoning in *County of Orange* no longer holds weight because the California Legislature decimated the CPRA pillars contained in *County of Orange* when it enacted SB 1421 and AB 748 in 2018, which greatly expanded public access to video and audio of police shootings under the CPRA. ROA 93. Specifically, Plaintiff emphasizes that SB 1421 and AB 748 expanded public access to video and audio recordings of officer involved shootings, reflecting a legislative determination that transparency regarding serious police misconduct and use of force is essential to public trust, officer accountability, and public safety. ROA 93. Plaintiff points out that under Penal Code Section 832.7(b)(1), records relating to officer involved shootings "shall be made available for public inspection" and are not "personnel records" or records of complaint as defined

		under Section 832.8. *Id*. Plaintiff argues that the video, audio, use-of-force reports, and incident reports for the January 1, 2025, shooting of her son and the December 1, 2024, shooting by the same officer are not personnel records and thus must be disclosed under the CPRA. ROA 93. Defendant contends that although some of the records requested by Plaintiff are not "personnel records" under Penal Code Section 832.8, they remain exempt from disclosure under Penal Code Section 832.7 because they relate to an incident currently under active investigation by the OCDA. ROA 84. Defendant further argues that Section 832.7(b)(8) provides that an agency may withhold records of an incident that is the subject of a criminal investigation for up to sixty (60) days after the incident or until charges are filed, whichever occurs sooner. *Id*. Thereafter, disclosure may continue to be delayed if it could reasonably be expected to interfere with a criminal enforcement proceeding against the officer involved. *Id*. Defendant contends that there is a significant public interest in ensuring that the active criminal investigation is not tainted and remains free of interference or pressure from the public. ROA 84. The Court has carefully considered Plaintiff's contention that *County of Orange* no longer carries persuasive weight in light of the Legislature's enactment of SB 1421 and AB 748, which substantially expanded public access to records relating to officer involved shootings. While these amendments reflect a legislative shift toward increased transparency in matters involving police use of force, the Court has not been presented with, nor independently identified, any published decision holding that SB 1421 or AB 748 abrogated or otherwise undermined *County of Orange*. Regardless, the Court finds that the information and materials Plaintiff seeks are not "personnel records" as defined by Penal Code Section 832.8 and are not exempt from disclosure under the exceptions in Penal Code Section 832.7. Accordingly, objections based on Penal

		Code Sections 832.7 and 832.8 are **OVERRULED**. Nevertheless, this determination does not entitle Plaintiff to disclosure of the confidential material contained within the investigative file, which remains protected under Evidence Code section 1040. *See supra.* C. Attorney Client Privilege The attorney client privilege is "absolute and prevents disclosure of the communication [between a client and attorney] regardless of its relevance, necessity or other circumstances peculiar to the case." *Kerner v. Superior Court*, 206 Cal. App. 4th 84, 111 (2012) (citing *Costco Wholesale Corp. v. Superior Court*, 47 Cal.4th 725, 101 (2009). "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response *shall* provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). "The purpose of a 'privilege log' is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production." *Hernandez v. Superior Court*, 112 Cal. App. 4th 285, 292 (2003). However, the Court recognizes: if a party responding to an inspection demand timely serves a response asserting an objection based on the attorney client privilege or work product doctrine, the trial court lacks authority to order the objection waived even if the responding party fails to serve a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. *Catalina Island Yacht Club v. Superior Court*, 242 Cal. App. 4th 1116, 1126–1127 (2015).

The appropriate remedy if the response or a privilege log fails to provide sufficient information is to order the responding party to serve a sufficient privilege log and impose sanctions for the deficient response. *Catalina Island Yacht Club, supra* at 1127; *see also* Cal. Civ. Proc. Code § 2031.310(h).

Plaintiff alleges Defendant failed to comply with the statutory requirement that when making such objections based on attorney client privilege because Defendant provided no factual information as to each claim of privilege. ROA 59, 93. Plaintiff further argues that, even where the privilege could apply to a portion of the requested information, Defendant failed to provide the remaining information not subject to attorney client privilege. ROA 59.

Defendant asserts that it properly asserted the attorney client privilege because Plaintiff's requests sought documents that would implicate the disclosure of confidential communications between attorneys and their clients. ROA 84. Specifically, Defendant argues that Plaintiff's requests include "all COMMUNICATIONS, including emails, text messages, and memorand[a] between YOUR personnel about the January 1, 2025, shooting." ROA 59, Exh. 1, RFP No. 15.

Defendant contends that Plaintiff has then defined "YOUR" to broadly include "Defendant City of Santa Ana and its employees, agents, *attorneys*, investigations, representatives and anyone else acting on Defendant's behalf." ROA 59, Exh. 1, RFP No. 15 (emphasis added). Defendant concludes that it was appropriate for Defendant to raise concerns that attorney client privilege would be implicated. ROA 84.

Lastly, Defendant points out that it provided a privilege log. ROA 84, Exh. A.

The Court acknowledges that Plaintiff's requests, as drafted, inherently encompass communications that may be protected by the attorney client privilege, particularly

given Plaintiff's broad definition of "YOUR" to include Defendant's attorneys. Thus, Defendant was not unreasonable in asserting that responsive materials could implicate privileged communications. However, in bringing this motion, Plaintiff expressly sought production of all non-privileged communications responsive to the requests. *See supra*.

The Court finds that Defendant's privilege log is deficient. While Defendant provided supporting factual information for other asserted privileges, it failed to include any factual detail substantiating its claims of attorney client privilege. However, Defendant has not waived privilege by operation of law. As such, the Court **ORDERS** Defendant to serve an amended privilege log providing sufficient factual information for each withheld document or communication it claims is protected by *attorney client privilege*. Additionally, sanctions are appropriate for the deficient privilege log.

D. Privacy

In California, parties may obtain *any* nonprivileged matter relevant to the action. Cal. Civ. Proc. Code § 2017.010; *Williams v. Superior Ct*., 3 Cal. 5th 531, 541 (2017). However, courts may limit discovery invasive to one's privacy. Cal. Civ. Proc. Code §§ 2017.020, 2025.420.

Under *Hill* and *Williams*, the objecting party must demonstrate a protected privacy interest, a reasonable expectation of privacy, *and* a serious intrusion. *See Hill v. National Collegiate Athletic Ass'n*, 7 Cal. 4th 1, 35-39 (1994); *see also Williams, supra*, 3 Cal. 5th at 552-60. After such showing, the burden shifts to the propounding party to show legitimate countervailing interests. *Williams, supra*, 3 Cal. 5th at 552. The Court will subsequently balance those interests and may impose protective measures. *Id*. at 552.

Plaintiff argues that Defendant has not met its burden to show the extent of the claimed privacy interest or the seriousness of the potential invasion of that interest because Defendant did not describe either. ROA 93.

		Defendant contends that its privacy objections are to protect documents from being disclosed which may contain sensitive information such as names and addresses of third party witnesses or those of police officers. ROA 84. Defendant contends that prior to the commencement of this motion, the parties had not yet agreed to sign a protective order thereby making it unwise to disclose the personal information of witnesses. *Id*. However, the parties have since filed their stipulated protective order. *See* ROA 95. The Court finds that the parties' stipulated protective order obviates any privacy concerns. As such, objections on the grounds of privacy are **OVERRULED**. Accordingly, the Court **GRANTS IN PART** Plaintiff's Motion to Compel Further Responses to Plaintiff's Request for Production, Set One. ROA 59. The Court **ORDERS** Defendant to produce any and all documents, video, audio, reports, transcripts, statements, photographs, and recordings that have previously *been disclosed* to the public via Defendant's Critical Incident YouTube video in unredacted form by no later than March 11, 2026. Moreover, the Court **ORDERS** Defendant to provide Plaintiff with: (1) an estimated date for completion of the investigation; and (2) an estimated date for production of responsive materials after the completion of the investigation no later than March 11, 2026. Consistent with *County of Orange*, the Court may, in the future, determine that insufficient progress in the investigation justifies disclosure of portions of the investigative file and may then order disclosure. Additionally, the Court **ORDERS** Defendant to amend its privilege log to provide sufficient factual information to its claims of *attorney client privilege*. The Court **IMPOSES** sanctions in the amount of $250 against Carpenter, Rothans & Dumont LLP due and payable to Qureshi Law PC within thirty (30) days of receiving notice. Lastly, at this time all documents, video, audio, reports, transcripts, statements, photographs, and recordings *not*

		previously disclosed are protected under Evidence Code Section 1040 until OCDA concludes its investigation. Plaintiff to give notice.
3.	Kohlman vs. Adaptive Behavior Center, Inc. 2024-01449191	Before the Court are a Motion to Compel Further Responses to Requests for Admissions ("RFA"), Set One, brought by Plaintiff Irene Kohlman ("Plaintiff") against Defendant Delight House, Inc. ("Defendant") (ROA 77); and an Order to Show Cause ("OSC") re: Monetary Sanctions against Sweet James LLP for failure to comply with Court Order (ROA 82) requiring counsel appearing at the Informal Discovery Conference ("IDC") to have authority to fully resolve all discovery issues. ROAs 77, 87. The underlying controversy involves a claim for Negligence (Wrongful Death) for the events leading to Decedent Donald Kohlman's demise while under the supervision of Defendant's employees. ROA 2, p.2. Plaintiff seeks an order compelling further responses by Defendant to Plaintiff's RFA, Set One, Nos. 1-9, pursuant to California Code of Civil Procedure Sections 2033.220, 2033.230, and 2033.290. ROA 77, p.2. Defendant requests that the Court deny Plaintiff's motion and seeks monetary sanctions against Plaintiff in the amount of $1,770.00 for costs incurred in opposing Plaintiff's Motion. ROA 90, p.1. I. Relevant Timeline of Events On November 11, 2025, Defendant served Plaintiff with initial responses to Plaintiff's RFA, Set One, by electronic means. ROA 77, Exh. 2. Plaintiff's deadline to file a motion to compel further responses was December 26, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2033.290(c).

		On November 12, 2025, Plaintiff sent an initial meet and confer letter to Defendant that addressed several alleged deficiencies in Defendant's responses and requested supplemental responses no later than November 14, 2025. ROA 77, Exh. 3. On November 14, 2025, Defendant replied with a detailed description of why Defendant's initial objections were valid and an offer to meet and confer further in order to provide additional clarification. ROA 77, Exh. 4. Additionally, Defendant took issue with Plaintiff's 48-hour deadline to provide supplemental responses, criticizing the short deadline as unprofessional and contrary to the reasonable, good faith attempt to resolve discovery disputes required by the courts. *Id.; see* Cal. Civ. Proc. Code § 2033.290(b)(1); *Clement v. Alegre*, 177 Cal. App. 4th 1277, 1294 (2009); *In re Marriage of Moore*, 102 Cal. App. 5th 1275, 128-99 (2024); *St. Mary v. Superior Ct.*, 223 Cal. App. 4th 762, 778 (2014). A short *seven (7) minutes later*, Plaintiff responded to Defendant's request to meet and confer further by notifying Defendant that Plaintiff would file a Motion to Compel and would request Issue Sanctions. ROA 90, Exh. C. The record before the Court is bereft of any facts indicating Plaintiff made any further good faith attempts to meet and confer in order to resolve their issues with Defendant's responses. True to his word, on December 1, 2025, Plaintiff served Defendant with the instant motion. ROA 77, p.17. On December 2, 2025, parties were ordered to attend an Informal Discovery Conference ("IDC") on December 31, 2025, in an effort to fully resolve discovery disputes informally. ROA 80. The Court's order explicitly demanded that "[c]ounsel appearing at the IDC must have authority to fully resolve all discovery issues in dispute." *Id.* On December 31, 2025, the parties attended IDC as ordered but were unsuccessful in resolving discovery disputes. ROA 87. Counsel who attended on behalf of

		Plaintiff did not have the authority to unilaterally resolve the disputes on Plaintiff's behalf. Notably, during IDC, the Court was able to fully resolve the dispute in an informal setting, but plaintiff's counsel then exited the IDC session to communicate with his supervisor, which ultimately resulted in a change of heart to prior mutual resolution. Plaintiff's counsel initially agreed to withdraw the motion since each and every single one of his RFAs was conjunctive, disjunctive, and/or compound, in direct contravention of California Code of Civil Procedure section 2033.060(f). After the IDC was concluded, plaintiff's counsel then reneged on the prior resolution, and instead, wanted to restore the motion to have it heard on the merits. As a result, the Court set both Plaintiff's motion for a hearing on the merits and an Order to Show Cause re: Monetary Sanctions against Sweet James, LLP, for Failure to Comply with Court Order. *Id.* II. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests Opposing parties' obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2033.080(a), 2033.290(b)(1). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040, 2033.290(b)(1); *Clement*, *supra,* 177 Cal. App. 4th at 1294; *Marriage of Moore, supra*, 102 Cal. App. 5th at 128-29; *St. Mary supra.,* 223 Cal. App. 4th at 778. In evaluating whether a reasonable, good faith attempt at an informal resolution has been attempted, courts consider "whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit. *Clement*, *supra*, 177 Cal. App. 4th at 1294. The level of effort required for informal resolution varies depending on the circumstances and is within the court's discretion to determine. *See Marriage of Moore*, *supra,* 102 Cal. App. 5th 102 at 1294; *See also*

Obregon v. Superior Ct., 67 Cal. App. 4th 424, 430-31 (1988).

"A reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. *Townsend v. Superior Ct.*, 61 Cal. App. 4th 1431, 1439 (1998).

Defendant argues that Plaintiff did not make a good faith effort to meet and confer regarding Plaintiff's discovery requests. ROA 90, p.7-8. The Court finds that the facts detailed above belie any argument that Plaintiff made a good faith attempt to resolve discovery disputes informally. There was *no* effort by Plaintiff's counsel to deliberate with opposing counsel. Indeed, it is clear from Defendant's correspondence that Defendant was more than willing to continue discussing the issue in good faith. ROA 98, Exh. 4. Plaintiff filed the instant motion a full twenty-five (25) days before their deadline to file and promised to do so only a short forty-eight (48) hours after requesting supplemental responses. *See supra*. Additionally, Plaintiff effectively ignored Defendant's offer to meet and confer further to discuss the RFAs in dispute. The Court finds Plaintiff's actions leading to this motion unquestionably unprofessional, unreasonably hasty, and clearly lacking the diligence required by both statute and common professional courtesy.

III. Sanctions re: Motions to Compel

California Code of Civil Procedure Section 2030.290 provides:

[t]he court *shall* impose a monetary sanction . . . against any party . . . or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Cal. Civ. Proc. Code § 2030.290(d) (emphasis added).

		'Whenever one party's improper actions—even if not "willful"—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.'" *Ellis v. Toshiba Am. Info. Sys. Inc.*, 218 Cal. App. 4th 853, 878 (2013) (quoting *Clement*, *supra,* 177 Cal. App. 4th at 1286-87. The term "substantial justification" means "a justification that 'is clearly reasonable because it is well grounded in both law and fact.'" *Marriage of Moore*, *supra*, 102 Cal. App. 5th at 1287 (*quoting Doe v. United States Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434, (2011)). In light of the foregoing, the Court finds that Plaintiff was not substantially justified in failing to meet and confer in good faith prior to filing the instant motion. The Court further finds no indication that the imposition of sanctions in this matter would result in an injustice to Plaintiff. IV. Reasonable Monetary Sanctions Appurtenant to Motions to Compel Three principles govern the award and amount of attorney's fees and costs imposed as a discovery sanction. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.*, 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions be accompanied by "a declaration setting forth facts supporting the amount of any monetary sanction sought." Cal. Civ. Proc. Code § 2023.040. The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. *Id.*, (*citing Parker v. Wolters Kluwer U.S., Inc.*, 149 Cal. App. 4th 285, 294 (2007)). "After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private

mediation or normal channels of communication, are *not* compensable as discovery sanctions." *Marriage of Moore, supra*, 102 Cal. App. 5th at 1301 (emphasis added).

Here, having weighed these principles and having considered Defendant's calculation of the reasonable expenses incurred in opposing Plaintiff's motion, the Court finds Defendant is entitled to discovery sanctions in the amount of $1,770.00.

V. Orders to Show Cause

California Code of Civil Procedure Section 177.5 provides that "[a] judicial officer shall have the power to impose reasonable monetary sanctions, not to exceed fifteen hundred dollars ($1,500) . . . payable to the court, for *any* violation of a lawful court order . . . done without good cause or substantial justification." Cal. Civ. Proc. Code § 177.5 (emphasis added); *see People v. Aguirre,* 64 Cal. App. 5th 652, 668 (2021) (stating Section 177.5 "does not require a 'wilfull violation, but merely one committed . . . without a valid excuse.'" (citations omitted)).

A court imposing sanctions pursuant to Section 177.5 must "recite in detail the conduct or circumstances justifying the order." *Id.* Indeed, a court must recite facts supporting a finding that a party violated a court order without good cause. *See People v. Edwards,* 88 Cal. App. 5th 1259, 1273 (2023) (finding a court's mere recitation of the words of the statute insufficient to support the imposition of sanctions). Finally, "[s]anctions pursuant to [Section 177.5] shall not be imposed except upon notice . . . and opportunity to be heard." *Id.*

Here, the Court's December 2, 2025, order instructed the parties that "[c]ounsel appearing at the IDC *must* have authority to fully resolve all discovery issues in dispute." ROA 82 (emphasis added). During the December 31, 2025, IDC, after the parties had reached a resolution of the instant discovery disputes, counsel for Plaintiff called their supervising attorney for guidance and was instructed to instead pursue the motion and request a hearing on the merits. Consequently, the Court, *sua sponte* set an OSC re:

		Monetary Sanctions for Plaintiff's counsel's failure to comply with the Court's order for February 19, 2026. ROA 87. The Court provided notice to Plaintiff on January 5, 2026. ROA 88. The Court finds that the Court's order was clear and unambiguous, and that Plaintiff's counsel's firm's failure to adhere to the Court's order was without good cause. Therefore, sanctions pursuant to California Code of Civil Procedure Section 177.5 are appropriate. Accordingly, the Court makes the following orders: The Court **DENIES** Plaintiff's Motion to Compel Further Responses to Requests for Admission, Set One (ROA 77) in its entirety for the reasons set forth above. The Court **IMPOSES** discovery sanctions upon Plaintiff's counsel in the total collective amount of $1,770.00, due and payable to Wood, Smith, Henning & Berman LLP, no later than thirty (30) days after receiving notice of this Order. The Court **IMPOSES** additional sanctions upon Plaintiff's counsel's firm, Sweet James, LLP, in the total collective amount of $300, due and payable to the Clerk of the Court no later than thirty (30) days after receiving notice of this Order. Clerk to give notice.
4.	Anaheim Hills Village Center, L.P. vs. Rinaldo 2023-01351993	Self-represented defendant Gerett Rinaldo moves for an order vacating and setting aside the default and default judgment entered against her in this action. Plaintiff Anaheim Hills Village Center, LLC, opposes the motion. Defendant does not offer any argument in support of her motion. Rather, she simply states that she is moving under subdivision (d) of Code of Civil Procedure section 473 and Code of Civil Procedure section 473.5 "on the grounds that Defendant was never properly served with the Summons and Complaint and therefore had no actual notice of this action."

		Subdivision (d) of section 473 relates in part to default judgments that are void. Specifically, it provides that the Court "may, on motion of either party after notice to the other party, set aside any void judgment or order." A judgment is void if a court lacks fundamental authority over the subject matter, question presented, or party. *Lee v. An*, 168 Cal. App. 4th 558, 565 (2008). A judgment is void on its face when the invalidity is apparent on inspection of the judgment roll. *Manson, Iver & York v. Black*, 175 Cal. App. 4th 36, 43 (2009). If the default judgment is void, the court may set it aside at any time upon noticed motion, *i.e.*, it is not subject to judicially imposed time limits. *California Capital Ins. Co. v. Hoehn*, 17 Cal.5th 207, 215-216 (2024). Here, the judgment is not void on its face because plaintiff filed a proof of service (ROA 26) showing that the moving defendant was personally served with the summons and complaint and other papers by personal service on October 13, 2023 at 6:45 p.m. at an address in Anaheim. The proof of service was signed under penalty of perjury under California law by James Baird, who stated that he was a registered California process server. The address in the proof of service where moving defendant was served is the same address that the moving defendant lists for herself in the motion. In addition, the request for default judgment that plaintiff filed on March 6, 2024 (ROA 37), which has also been submitted by plaintiff as Exhibit 3 to the opposition, includes a proof of service indicating that this document was served by mail to the moving defendants and the co-defendants at that address. Thus, the default judgment is not void on its face. Furthermore, the only evidence that the moving defendant offers in support of her motion is her own declaration in which she declares that she was never served with the summons and complaint in this matter. She also declares that she could not have been served with the summons and complaint on October 13, 2023 at approximately 6:45 p.m., because she "was away from my residence attending

		an event and traveling by rideshare." However, she does not offer any further details. Code of Civil Procedure section 473.5 permits the court to set aside a default or default judgment against a defendant in cases where service of summons did not result in actual notice to a defendant in time to defend the action and a default or default judgment has been entered. *Goya v. P.E.R.U. Enterprises*, 87 Cal. App. 3d 886, 890 (1978). Relief under section 473.5 is appropriate where: • the defendant received, through no inexcusable fault of his or her own, no actual notice of the action in time to appear and defend, and had not made a general appearance; • the court entered default of default judgment against the defendant; • defendant acted with reasonable diligence in serving and filing the notice of motion to set aside the default or default judgment; or • defendant has a meritorious defense Moreover, a motion for relief from default or default judgment under section 473.5 must be filed "within a reasonable time" and no later than the earlier of the following: • 2 years after entry of a default judgment against the defendant; or • 180 days after service on defendant of written notice that a default or default judgment has been entered. Here, the motion is timely because it was filed less than two years after the default judgment was entered on April 15, 2024 and the Court's file does not have any written notices of entry of default or default judgment that were served on defendant—and plaintiff has not submitted any such notices as exhibits to its opposition. However, defendant does not offer any explanation about how or when she became aware of the existence of the action, and plaintiff has submitted exhibits showing that it

		served documents related to the action to defendants at the address shown on defendant's motion. Moving defendant has not shown that she is entitled to relief from the default and default judgment under either subdivision (d) of Code of Civil Procedure section 473 or Code of Civil Procedure section 473.5. Accordingly, the motion of defendant Gerett Rinaldo for an order vacating and setting aside the default and default judgment entered against her in this action is **DENIED**. Clerk to give notice.
5.	Najar vs. Singh 2025-01489036	Before the Court is a Motion to Deem Facts Admitted. ROA 18. On June 11, 2025, Plaintiff Victoria Najar ("Plaintiff") filed a personal injury lawsuit. ROA 14. On August 24, 2025, Plaintiff propounded written discovery, including Requests for Admission, Set One, on Defendant Sarbjeet Singh ("Defendant"). ROA 14. Defendant's responses were due September 26, 2025. ROA 14. Defendant failed to respond to the written discovery by the prescribed timeline. *Id*. On October 30, 2025, Plaintiff filed the instant Motion to Deem Requests for Admission Admitted. ROA 18. On February 4, 2026, Defendant, by and through his counsel of record, filed Notice of Non-Opposition. ROA 42. In the Notice of Non-Opposition, Defendant contends that he does not oppose Plaintiff's Motion to Deem Facts Admitted because the motion is moot. *Id*. Defendant asserts that he served verified responses to Plaintiff's Requests for Admission on February 3, 2026. *Id*. I. Motion to Deem Facts Admitted Under California Code of Civil Procedure Section 2033.280, if a party to whom requests for admission are

		directed fails to serve a timely response the party waives any objection to the requests, including one based on privilege or on the protection for work product. Cal. Civ. Proc. Code § 2033.280(a). Additionally, the requesting party "may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." *Id*. at (b). The Court must make this order, unless it finds that the responding party has served, before the hearing on the motion, proposed responses to the requests for admission that are in substantial compliance with Section 2033.220. *Id*. at (c). The Code requires that each answer in response to requests for admission admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party; deny so much of the matter involved in the request as is untrue; or specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. Cal. Civ. Proc. Code § 2033.220. Here, Defendant failed to timely respond to the Requests for Admission. ROA 14. As such, Defendant waives all objections, including ones based on attorney client privilege and work product doctrine. However, Defendant subsequently served code compliant responses to the requests prior to the hearing. ROA 42, Exh. A. As such, the Court declines to enter an order that deems the requests admitted. II. Mandatory Sanctions California Code of Civil Procedure Section 2033.280(c) provides in pertinent part, that the court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion. Cal. Civ. Proc. Code § 2033.280(c).

		Defendant's counsel, Carlos Valenzuela, represented to Plaintiff that he was unable to reach his client from August 2025, to the date of this Motion's filing. ROA 18. As a result, it is unclear to the Court whether Defendant had notice of the applicable discovery obligations. Accordingly, the Court finds that sanctions are appropriately imposed against Defendant's counsel, rather than Defendant, as counsel's failure to timely serve a response necessitated the filing of this Motion. Accordingly, the Court **DENIES** Plaintiff's Motion to Deem Facts Admitted. ROA 18. Lastly, the Court **IMPOSES** sanctions in the amount of $1,000 against Defendant's counsel, Carlos Valenzuela, due and payable to Zagar & Irvin within sixty (60) days of receiving notice. Plaintiff to give notice.